

Athens, 29-01-2024
No. Protocol 424
D E C I S I O N 47 /2023
(Department)

The Hellenic Data Protection Authority convened in a Department composition following an invitation from its President via teleconference on Wednesday, October 4, 2023, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzalexis, due to the absence of the President of the Authority Konstantinos Menoudakos, and the alternate members of the Authority, Dimosthenis Bougioukas and Maria Psalla, replacing the regular Members Konstantinos Lamprinoudakis and Grigorios Tsolias, who, although duly summoned, did not attend due to impediments, as well as Georgios Kontis, as an alternate Member serving as rapporteur. Present without voting rights were Anastasia Tritaki, a legal expert, as assistant rapporteur, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the No. protocol G/EIS/3569/08-03-2022 complaint to the Authority, A complained before the Authority that despite multiple requests she submitted to the Cultural Association X for copies of the minutes of the board meetings and the general assembly concerning her, the accused association did not satisfy her request. Specifically, the complainant states that on 22/9/2017 she submitted the first request to the board of the association for copies of the minutes, which she claims was not answered. With her request on 28/11/2019, the complainant reiterated her request, seeking a response to the previous request dated 22/9/2017, and received a negative response from the board dated 29/12/2019. The complainant asserts that subsequently she submitted a new request on 9/5/2021 for copies, which was also rejected with a letter from the association dated 7/6/2021. Following this, she submitted a new request on 3/10/2021, which was rejected with a letter from the association dated 2/11/2021, stating that the request had already been answered with the board's response dated 7/6/2021.

The Authority, in the context of examining the above complaint, with its No. protocol G/EXE/1107/11-05-2022 document, invited the accused Cultural Association X to present its views on this matter.

In its response No. protocol (No. protocol G/EIS/7437/26-05-2022), the accused Cultural Association X argued before the Authority, among other things, the following: a) that the request of the complainant dated 22/9/2017 was not satisfied, as it concerned the provision of copies regarding the board's decision to terminate the cooperation with her as ..., however, one month later, in October 2017, the cooperation with her was renewed, therefore according to the contents of the above response, the justification for the request ceased to exist, b) that the request of the complainant dated 28/11/2019 constituted a re-submission of her request from 22/9/2017, regarding which the board of the Association invited, with its response dated 29/12/2019, the complainant to its offices to read the minutes of the meetings concerning her, in accordance with Article 6 of the association's statutes, which provides that members may read the minutes (and not receive copies); according to the claims of the accused...

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The complainant appeared at the offices of the association, read the minutes of the meetings that concerned her personally, and departed, d) that this also took place on 9/7/2021, following a new request from the complainant, e) that the other requests of the complainant have been answered and have been brought to the attention of the Authority by the complainant. The respondent pointed out that, in his opinion, the complainant's right of access to the minutes concerning her was fully satisfied twice, while the continued submission of requests "is considered abusive."

Following the examination of the file's elements, the Authority sent the notification number G/EXE/2801/07-11-2022 for a hearing to the respondent and notification number G/EXE/2802/07-11-2022 to the complainant, in order to attend, via teleconference, a hearing before the Authority's Department on Wednesday, November 16, 2022, at 12:00, regarding the discussion of

the aforementioned complaint.

During the aforementioned session, the complainant did not attend, either in person or through a proxy lawyer, nor did she submit, prior to the start of the session, a memorandum indicating her presence before the Authority without attending the session, in accordance with Article 9, paragraph 1 of the Authority's Operating Regulation. On behalf of the respondent Cultural Association X, the proxy lawyer Christos Chatzipemou attended.

The Authority, having examined and determined that the complainant was duly and timely summoned, in accordance with Article 9, paragraph 5 of the Authority's Operating Regulation, proceeded to discuss the case.

During the aforementioned session, the respondent, through his proxy lawyer, orally presented his views on the complaint under examination and answered questions posed by the President and the Members of the Authority. The respondent was given a deadline to submit a memorandum for further support of his claims until November 30, 2022; however, no relevant memorandum was submitted by the respondent association.

During the aforementioned session, the respondent Association argued, among other things, that it could not provide copies of the minutes of the Board of Directors to the complainant, as this is not provided for in the Association's statutes, while these minutes contain numerous personal data of third parties. It was also pointed out that on multiple occasions, it was communicated through the Board of Directors to the complainant that she could access the minutes of the Association concerning her through on-site study at the Association's offices. Furthermore, the respondent was asked to provide explanations regarding the fact that with her last request dated 3/10/2021, the complainant requested copies of the parts of the minutes of the Board of Directors that concerned her and were "necessary for the exercise of her legal rights," and in this regard, the respondent claimed that the complainant did not specify the intended manner of exercising her rights, so that the respondent could specifically respond to the said request.

The Authority, after examining the elements of the file and what emerged from the hearing before it, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1) Since the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57, paragraph 1, point (f) of the GDPR and 13, paragraph 1, point (g) of Law 4624/2019, it follows that the Authority has the competence to address the complaint of A against the Cultural Association X, as the complaint under examination concerns a request for access to personal data held in the association's records, thus included in a filing system within the meaning of Article 4, points 2) and 6) of the GDPR, under processing subject to the regulatory scope of Articles 2, paragraph 1 of the GDPR and 2 of Law 4624/2019.

2) Whereas, regarding the submitted requests of the complainant to the respondent association, the following should be noted initially: a) With her request dated 22/9/2017, the complainant requested copies of the decisions of the board of directors of the respondent association concerning the termination of the cooperation with her as ..., given that they concern her "personally", b) with her request dated 28/11/2019, the complainant requested a response to the request dated 22/9/2017, c) with her request dated 9/5/2021, the complainant requested, among other things, copies of the general assemblies of the association and copies of the minutes kept from the meetings of the board of directors of the association over the last 7 calendar years, without linking her above request to her person, d) with her request dated 3/10/2021, the complainant requested "copies of the points from the minutes of the meetings of the board of directors that concern her." From the above, it can be inferred that the complainant submitted on 22/9/2017 and 3/10/2021 requests to the board of the Cultural

Association X for copies of the board minutes, which contain data concerning her, while the request dated 28/11/2019 does not constitute a new request, but a reminder for the request dated 22/9/2017, and the request dated 9/5/2021 does not contain a request for copies referring to data of the complainant, therefore it does not constitute a request for copies within the meaning of Article 15 paragraph 3 of the GDPR and its examination falls outside the authority of the Authority. Therefore, the examination of the complaint at hand concerns the requests dated 22/9/2017 and 3/10/2021 of the complainant to the respondent.

3) Whereas, according to the provisions of Article 4 point 7 of the GDPR, the data controller is understood as "the natural or legal person, the public authority, the service, or another body that, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State." According to the Guidelines 07/2020 of the EDPB regarding the concepts of the controller and the processor, in cases where the law imposes an obligation or assigns a duty to an entity to collect and process specific data, the purpose of the processing is often determined by legislation and the controller is usually designated by law to achieve that purpose. Legislation may also impose on public or private entities the obligation to retain or provide specific data. Such entities are generally considered data controllers concerning the processing deemed necessary for fulfilling the specific obligation. In this case, the complainant is requesting access to personal data, which is included in records that the association is obliged to maintain under the relevant legislation; therefore, in this case, the legal entity Cultural Association X constitutes the data controller.

4) Whereas, according to the provisions of Article 5 paragraph 2 of the GDPR, the data controller bears the responsibility and must be able to demonstrate compliance with the principles of processing established in paragraph 1 of Article 5. As the Authority has ruled, with the GDPR a new compliance model has been adopted, the central element of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller is burdened with the additional duty to demonstrate itself and at any time its compliance with the principles of Article 5 paragraph 1 of the GDPR.

5) Whereas regarding the request dated 22/9/2017 of the complainant, it should be emphasized primarily that it was submitted before the application of the General Data Protection Regulation 2016/679/EU, therefore this request will...

must be examined in light of the previous regime of Directive 95/46/EC, as incorporated into Greek law by the former Law 2472/1997 (Government Gazette A' 50). From the review of the provisions regarding the right of access of the data subject to data concerning them, as guaranteed by Article 12 of Law 2472/1997 (Government Gazette A' 50) and the corresponding provision of Article 12 of Directive 95/46/EC, it can be inferred that the right to obtain a copy of the data, as a means of satisfying the right of access, was not expressly provided for under the previous legal framework for data protection. Interpreting the right of access under the regime of Directive 95/46/EC, the CJEU pointed out that "Directive 95/46 obliges Member States to ensure that data subjects have the possibility to obtain from the data controller notification of all data concerning them that is being processed; however, it leaves it to the Member States to determine the specific material form of this notification, provided that it is carried out in a 'readable' manner, that is, in a way that allows the data subject to ascertain the accuracy of such data and the compliance of their processing with the directive, so that they may possibly exercise the rights conferred on them by Articles 12(b) and (c), 14, 22, and 23 of this directive (...) Therefore, since the purpose pursued by the right of access is fully served by another form of notification, the person to whom the data relates cannot claim, either on the basis of Article 12(a) of Directive 95/46 or on the basis of Article 8(2) of the Charter, the right to receive a copy of the document or the original file in which such data is included. In order for the data subject not to have access to other information beyond the personal data concerning them, a copy of the original document or file may be provided with the concealment of such other information. (...) For the

exercise of this right, it is sufficient to provide the applicant with a complete picture of such data in a readable manner, that is, in a way that allows the data subject to ascertain the accuracy of such data and the compliance of their processing with the directive, so that they may possibly exercise the rights arising from this directive."⁴

6) Since in the case at hand, based on what emerged from the examination of the file and the hearing process, the respondent Association did not respond to the request of the complainant dated 22/9/2017, prior to her relevant submission, which took place on 28/11/2019, when the Board of Directors of the Association invited, with its response dated 29/12/2019, the complainant to review the minutes of the association on-site. Taking into account the interpretation of Article 12 of Directive 95/46/EC by the CJEU, the satisfaction of the complainant's request through on-site review of the minutes is deemed a satisfactory way to respond to the complainant's access request. However, regarding the deadline for satisfying the request dated 22/9/2017, it is noted that according to Article 12(4) of Law 2472/1997 (Government Gazette A' 50), as it was in force at the time of the request: "If the data controller does not respond within fifteen (15) days or if their response is not satisfactory, the data subject has the right to appeal to the Authority (...)." In the case at hand, the respondent did not respond in any way to the complainant's request dated 22/9/2017, prior to her relevant submission, which took place on 28/11/2019, when the Board of Directors of the Association invited, with its response dated 29/12/2019, the complainant to review the minutes of the association on-site; therefore, the respondent did not comply with the deadline for response set by Article 12(4) of Law 2472/1997 (Government Gazette A' 50). However, the aforementioned law has already been repealed, and therefore any violation of the compliance with the above provision by the respondent as the data controller no longer incurs any sanction.

7) Regarding the request of the complainant dated 3/10/2021, the following should be taken into account: Article 15 of the GDPR states that: "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed; [...]"
1. The data subject has the right to know whether personal data concerning them is being processed and, if so, the right to access the personal data and the following information: (...)

2. (...)

3. The data controller provides a copy of the personal data being processed. For additional copies that may be requested by the data subject, the data controller may impose a reasonable fee for administrative costs. If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information is provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 does not adversely affect the rights and freedoms of others. Furthermore, according to Recital 63 of the GDPR, "A data subject should have the right to access personal data concerning them and to exercise that right easily and at reasonable intervals in order to be aware of and verify the lawfulness of the processing. (...)"

8. Furthermore, according to Article 12(1) of the GDPR, "The data controller takes appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication under Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing children. The information is provided in writing or by other means, including, where appropriate, electronically. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means." According to paragraph 2 of the same article: "The data controller facilitates the exercise of the rights of data subjects as provided in Articles 15 to 22. (...)"

9. In the case at hand, from the examination of the file and the hearing process, it appears that the request dated 3/10/2021 from the complainant, in which she requested copies "of the minutes from the meetings of the Board of Directors concerning her," with the purpose, as stated, of exercising her rights, was rejected by a letter from the respondent dated 2/11/2021. In that letter, the respondent informed the complainant that the Board of Directors of the Association unanimously decided that her

request had already been answered by the response letter dated 7/6/2021, which rejected her previous request dated 9/5/2021 for copies of the minutes of the Board of Directors and the General Assembly for the last 7 calendar years. Furthermore, during the aforementioned hearing, the respondent argued that on multiple occasions, it was communicated by the Board of the respondent association to the complainant, through oral notification, that she could review the minutes concerning her by studying them on-site at the offices of the Association, refusing to satisfy her request for copies of the minutes of the Board of Directors due to the lack of a relevant provision in the association's statute, as well as due to the reference to numerous personal data of third parties contained therein. Regarding the "exercise of her rights," the respondent association also argued during the hearing before the Authority that the complainant should sufficiently specify the manner of her intended exercise of her rights in order to be able to satisfy her request by providing a copy of her data.

****10.**** Regarding the reasons for the refusal to satisfy the respondent data controller's request dated 3/10/2021 from the complainant for copies of the minutes of the Board of Directors concerning her, the following should be noted: Regarding the provision of the association's statute cited by the respondent (Article 6(e) of the Statute) concerning the ability of members to read the minutes and the lack of a relevant provision for members to obtain copies of the minutes, it is noted that the absence of a provision in the statute allowing members to obtain copies of the minutes...

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****11)**** Since, according to the Guidelines 1/2022 of the EDPB regarding the right of access, the main way to provide access to data to the data subject is through the provision of a copy of their data, the obligation to provide a copy of the data should not be interpreted as an additional right of the subject, but as a means of providing access to their data. At the same time, the obligation to provide a copy of the data does not expand the purpose of the right of access, as it only concerns the copying of data that is being processed and not necessarily the reproduction of original documents. The obligation to provide a copy serves the purpose of the right of access to allow the data subject to be informed and to verify the legality of the processing (See also Recital 63 of the GDPR). In certain circumstances, there may be other appropriate means to satisfy the right of access, and the data controller may ensure the data subject's right of access through other alternatives, for example, through oral information, through examination of records, through on-site or remote access, without the possibility of obtaining copies.

The right to receive a copy of the data is not always understood as the subject's right to receive a copy of the documents containing their data, but as the right to receive an accurate copy of the data being processed in those documents. Such a copy can be created by collecting all the data relevant to the right of access, provided that the collection enables the knowledge and verification of the legality of the processing for the data subject.

****12)**** Since, with the Judgment C-487/21, the Court of the EU also ruled that in the event of a conflict between, on the one hand, the exercise of the right to full access to personal data and, on the other hand, the rights or freedoms of third parties, a balancing of the relevant rights must be carried out and "Whenever possible, methods of communicating personal data that do not infringe the rights or freedoms of third parties should be chosen, taking into account, however, that, as stated in Recital 63 of the GDPR, such factors should not 'result in the denial of the provision of any information to the data subject.' Furthermore, as the Court ruled, "Regarding the purposes pursued by Article 15 of the GDPR, it is noted that, as clarified in Recital 11, the purpose of the GDPR is to strengthen and detail the rights of data subjects. Article 15 of this regulation provides, accordingly, for the right to receive a copy. Recital 63 of the GDPR clarifies that '[t]he data subject should have the right to access personal data concerning them and to exercise that right easily and at reasonable intervals, in order to be aware of and verify the lawfulness of the processing.'"

****End of Translation****

****14)**** However, as the Authority has repeatedly ruled, for the proper and complete observance of the

provisions of Article 12 of the GDPR regarding the right of access under Article 15 of the GDPR, the data controller has an obligation to respond substantively to the access request of the complainant, even if negatively. Furthermore, the refusal to satisfy the exercised right of access must be made in writing, with a detailed presentation and sufficient documentation of the relevant reasons for rejection by the data controller, in order to meet the requirement of transparent information, as per Article 12(1) of the GDPR. In this case, the rejection of the complainant's request in the letter dated 2/11/2021 from the association does not contain the required reasoning and documentation for the rejection of the complainant's request, which is also not included in the response dated 7/6/2021, even if it were to be considered relevant to the substantially different request of the complainant examined herein dated 3/10/2021. Moreover, the oral information provided to her regarding the reasons for the rejection of her request cannot be considered as a sufficiently reasoned and documented rejection of her request for access to data concerning her. Furthermore, as ruled by the Authority, in cases where the provision of a copy may adversely affect the rights and freedoms of other individuals under Article 15(4) of the GDPR, as claimed in this case by the data controller association, it may be deemed necessary to specify the access request, so that the data controller can assess, within the framework of the accountability principle, whether there is a risk of adverse impact on the rights and freedoms of others, and consequently whether there is a legitimate reason for not providing the data. However, based on the principle of accountability, according to Article 5(2) of the GDPR, it is the duty of the data controller to facilitate the exercise of the subject's right, in accordance with Article 12(2) of the GDPR, by inviting them to specify the access request.

16 Decision 20/2023, available on the Authority's website. See also Council of State (CoS 2627/2017).

17 Decisions 36/2021 and 39/2021, available on its website.

18 Decision 19/2022 of the Hellenic Data Protection Authority, available on its website.

in order to be able to satisfy the exercised right while simultaneously safeguarding any data of third parties. In this specific case, the respondent Association, as already established above, in its response dated 2/11/2021 to the complainant, rejected the request for access to the minutes of the Board of Directors that concern her, without providing justification, and raised this claim only before the Authority. In this regard, it is determined that the respondent data controller has violated the provisions of Article 12 paragraphs 1, 2 of the GDPR in conjunction with the provisions of Article 15 paragraphs 1, 3 of the GDPR.

Following all of the above, in light of the repeal of Law 2472/1997 as mentioned above, it is determined that the respondent data controller has only violated the provisions of Article 12 paragraphs 1, 2 of the GDPR in conjunction with the provisions of Article 15 paragraphs 1, 3 of the GDPR, concerning the request for access from the complainant dated 3/10/2021.

The Authority finds that in relation to the above-described violations, there is a case for exercising its corrective powers under Article 58 paragraph 2 of the GDPR, as the content of this is supplemented by Recital 148 of the GDPR. Specifically, the Authority, taking into account all the circumstances of the case under examination, finds that in relation to the above-detailed reported violations, there is a case for the application of the provision of Article 58 paragraph 2 point (b) of the GDPR, and the Authority should issue a reprimand to the respondent data controller for the violation of the aforementioned provisions of the GDPR.

FOR THESE REASONS

The Authority

19 Ibid. see also Decision 26/2021, regarding the facilitation of the exercise of the right of access, available on its website.

determines that the respondent data controller Cultural Association X has violated the complainant's right of access, in violation of the provisions of Article 12 paragraphs 1, 2 of the GDPR in conjunction with the provisions of Article 15 paragraphs 1, 3 of the GDPR, and issues a reprimand under Article 58 paragraph 2 point (b) of the GDPR to the respondent Cultural Association X, for the reasons extensively analyzed in the reasoning of this decision.

The President
The Secretary
Georgios Batzalexis
Irini Papageorgopoulou